

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 2951

By: Hardin

AS INTRODUCED

An Act relating to prisons and reformatories; amending 57 O.S. 2021, Section 95, which relates to the delivery of sentenced persons; authorizing the transport of inmates to certain facility; amending 57 O.S. 2021, Sections 502, as amended by Section 2, Chapter 22, O.S.L. 2023, 508, and 509, as last amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025, Sections 502 and 509), which relate to the Oklahoma Corrections Act of 1967; removing and adding correctional centers to certain defined term; updating reference to certain named act; deleting certain salary restriction; adding correctional centers to list of penal institutions maintained by the Department of Corrections; repealing 57 O.S. 2021, Section 504.7, which relates to the Kate Barnard Community Corrections Center; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 95, is amended to read as follows:

Section 95. A. Any person convicted of an offense against the laws of this state and sentenced to imprisonment that is not to be served in a county jail shall be transported by the sheriff of the county where the person is sentenced, or transported by a designated

1 representative of the sheriff, to the Department of Corrections at
2 the Lexington Assessment and Reception Center, the Mabel Bassett
3 Correctional Center, or other location designated by the Director of
4 the Department of Corrections.

5 B. Any person convicted of an offense against the laws of this
6 state and sentenced to imprisonment that is not to be served in a
7 county jail and who is not housed in a county jail shall be
8 transported by the detention center, or transported by a designated
9 representative of the detention center, to the Department of
10 Corrections at the Lexington Assessment and Reception Center, the
11 Mabel Bassett Correctional Center, or other location designated by
12 the Director of the Department of Corrections.

13 C. The sheriff shall deliver the person to the Department at
14 such center together with:

15 1. A certified copy of the judgment and sentence from the court
16 ordering such imprisonment, unless the judgment and sentence
17 previously has been sent electronically by an authorized clerk of
18 the court;

19 2. A certificate setting forth the number of days served in the
20 county jail after the pronouncement of judgment and rendering of
21 sentence for the offenses committed;

22 3. A copy of any medical, dental, or mental health records of
23 the defendant for conditions reviewed or treated while in the
24 custody of the sheriff;

1 4. Any medication or medical or dental device prescribed for
2 the defendant while in the custody of the sheriff or for a
3 preexisting condition; and

4 5. A copy of the presentence investigation report, if a report
5 was prepared.

6 D. The Department of Corrections shall give the sheriff a
7 receipt for each person received into the custody of the Department.
8 The receipt shall be filed by the sheriff in the office of the clerk
9 of the court where the sentence was made.

10 E. The Department of Corrections shall reimburse the
11 transporting agency as follows:

12 1. Mileage from the county sheriff's office to the appropriate
13 reception center and back to the county sheriff's office; and

14 2. Hourly wage reimbursement for the transporting officer for
15 the hours of transport travel and time spent at the reception center
16 based on the transporting officer's normal hourly wage.

17 Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per
18 officer. Documentation of the officer's hourly wage shall accompany
19 all reimbursement requests to the Department.

20 The Department of Corrections shall have the authority to
21 promulgate rules and forms for the reimbursement procedures provided
22 in this section.
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1 The Department of Corrections shall submit a quarterly report to
2 the Chair of the Senate Appropriations Committee and Chair of the
3 House of Representatives Appropriations and Budget Committee.

4 SECTION 2. AMENDATORY 57 O.S. 2021, Section 502, as
5 amended by Section 2, Chapter 22, O.S.L. 2023 (57 O.S. Supp. 2025,
6 Section 502), is amended to read as follows:

7 Section 502. As used in this title, unless the context
8 otherwise requires:

9 1. "Board" means the State Board of Corrections;

10 2. "Department" means the Department of Corrections of this
11 state;

12 3. "Director" means the Director of the Department of
13 Corrections;

14 4. "Halfway house" means a private facility for the placement
15 of inmates in a community setting for the purpose of reintegrating
16 into the community inmates who are nearing their release dates. The
17 term shall not include private prisons;

18 5. "Institutions" means the Oklahoma State Penitentiary located
19 at McAlester, Oklahoma; the Oklahoma State Reformatory located at
20 Granite, Oklahoma; the Lexington Assessment and Reception Center
21 located at Lexington, Oklahoma; the Joseph Harp Correctional Center
22 located at Lexington, Oklahoma; the Jackie Brannon Correctional
23 Center located at McAlester, Oklahoma; the Howard McLeod
24 Correctional Center located at Atoka, Oklahoma; the Mack H. Alford

1 Correctional Center located at Stringtown, Oklahoma; the Jim E.
2 Hamilton Correctional Center located at Hodgen, Oklahoma; the Mabel
3 Bassett Correctional Center located at McCloud, Oklahoma; the R.B.
4 "Dick" Conner Correctional Center located at Hominy, Oklahoma; the
5 James Crabtree Correctional Center located at Helena, Oklahoma; the
6 Jess Dunn Correctional Center located at Taft, Oklahoma; the John
7 Lilley Correctional Center located at Boley, Oklahoma; ~~the William~~
8 ~~S. Key Correctional Center located at Fort Supply, Oklahoma;~~ the Dr.
9 Eddie Warrior Correctional Center located at Taft, Oklahoma; the
10 Northeast Oklahoma Community Corrections Center located at Vinita,
11 Oklahoma; the Clara Waters ~~and Kate Barnard~~ Community Corrections
12 ~~Centers~~ Center located at Oklahoma City, Oklahoma; the Community
13 Corrections Centers located at Lawton, Enid, ~~Oklahoma City~~ and Union
14 City; the Charles E. "Bill" Johnson Correctional Center, located
15 east of Alva, Oklahoma; ~~the Southern Oklahoma Resource Center~~
16 ~~located at Pauls Valley, Oklahoma~~ the Great Plains Correctional
17 Center located at Hinton, Oklahoma; the Allen Gamble Correctional
18 Center located at Holdenville, Oklahoma; the Red Rock Correctional
19 Center located at Lawton, Oklahoma; and other facilities under the
20 jurisdiction and control of the Department of Corrections or
21 hereafter established by the Department of Corrections;

22 6. "Intermediate revocation facility" means a corrections
23 center operated by the Department of Corrections or a private
24 facility or public trust operating pursuant to contract with the

1 Department of Corrections which provides housing and intensive
2 programmatic services for offenders who have violated the terms or
3 conditions of probation as determined by a supervising probation
4 officer. "Intensive programmatic services" offered by the
5 Department of Corrections includes, but shall not be limited to,
6 alcohol and substance abuse counseling and treatment, mental health
7 counseling and treatment and domestic violence courses and treatment
8 programs;

9 7. "Intermediate sanctions facility" means a community
10 corrections center operated by the Department of Corrections or a
11 private facility or public trust operating pursuant to contract with
12 the Department of Corrections which provides for the housing and
13 programmatic services of offenders such as probation or parole
14 violators or community sentenced offenders placed in the facility
15 for disciplinary sanctions, work release offenders, offenders who
16 need intensive programmatic services, or offenders who have
17 demonstrated positive adjustment while in an institutional setting
18 who need additional programmatic services to enhance their reentry
19 into society upon release from a prison term; and

20 8. "Private prison contractor" means:

21 a. a nongovernmental entity or public trust which,
22 pursuant to a contract with the Department of
23 Corrections, operates an institution within the
24 Department other than a halfway house or intermediate

1 sanctions facility, or provides for the housing, care,
2 and control of inmates and performs other functions
3 related to these responsibilities within a minimum,
4 medium, or maximum security level facility not owned
5 by the Department but operated by the contractor, or
6 b. a nongovernmental entity or public trust which,
7 pursuant to a contract with the United States or
8 another state, provides for the housing, care, and
9 control of minimum or medium security inmates in the
10 custody of the United States or another state, and
11 performs other functions related to these
12 responsibilities other than a halfway house or
13 intermediate sanctions facility within a facility
14 owned or operated by the contractor.

15 SECTION 3. AMENDATORY 57 O.S. 2021, Section 508, is
16 amended to read as follows:

17 Section 508. The Director, subject to the approval of the
18 Board, is hereby authorized to create divisions within the
19 Department of Corrections as ~~he~~ they may deem appropriate to
20 effectively manage the Department. The divisions shall be under the
21 immediate supervision and control of the Director. The Director is
22 hereby authorized to appoint Deputy Directors for the divisions of
23 the Department, who shall be exempt from the ~~Merit System of~~
24 ~~Personnel Administration Act~~ Civil Service and Human Capital

1 Modernization Act, and to fix the salaries and duties thereof;
2 ~~provided, the salary ranges of said Deputy Directors shall be set by~~
3 ~~the Legislature in the Department's annual appropriation.~~ The
4 Deputy Directors shall have at least a master's degree from an
5 accredited college or university and at least four (4) years of
6 professional level work experience in corrections; or a bachelor's
7 degree and at least five (5) years of work experience in
8 corrections. Provided, however, that for the position of Deputy
9 Director of administrative services, professional level
10 administrative experience may be substituted for work experience in
11 corrections. The provisions of this act shall not apply to those
12 presently serving as Deputy Director as herein defined.

13 SECTION 4. AMENDATORY 57 O.S. 2021, Section 509, as last
14 amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025,
15 Section 509), is amended to read as follows:

16 Section 509. A. The Department of Corrections is authorized to
17 maintain the following facilities in this state:

- 18 1. Oklahoma State Penitentiary in McAlester;
- 19 2. Oklahoma State Reformatory in Granite;
- 20 3. Lexington Assessment and Reception Center in Lexington;
- 21 4. Jackie Brannon Correctional Center in McAlester;
- 22 5. Joseph Harp Correctional Center in Lexington;
- 23 6. Howard McLeod Correctional Center in Atoka;
- 24 7. Mack H. Alford Correctional Center in Stringtown;

8. Jim E. Hamilton Correctional Center in Hodgen;
9. Mabel Bassett Correctional Center in McLoud;
10. R.B. "Dick" Conner Correctional Center in Hominy;
11. James Crabtree Correctional Center in Helena;
12. Jess Dunn Correctional Center in Taft;
13. Northeast Oklahoma Community Corrections Center in Vinita;
14. John Lilley Correctional Center in Boley;
15. Dr. Eddie Warrior Correctional Center in Taft;
16. Clara Waters Community Corrections Center in Oklahoma City;
17. Lawton Community Corrections Center in Lawton;
18. Enid Community Corrections Center in Enid;
19. Union City Community Corrections Center in Union City;
20. Charles E. "Bill" Johnson Correctional Center in Alva; and
21. ~~A facility purchased pursuant to the provisions of Enrolled House Bill No. 2780 of the 1st Session of the 60th Oklahoma Legislature~~ Great Plains Correctional Center in Hinton;
22. Allen Gamble Correctional Center in Holdenville; and
23. Red Rock Correctional Center in Lawton.

B. The Department shall be the legal successor of and, except as otherwise provided in the Oklahoma Corrections Act of 1967, shall have the powers and duties vested by law in the Office of Management and Enterprise Services in all matters relating to penal institutions, heretofore or hereafter established by the Department,

1 which institutions and community corrections centers shall be under
2 the administrative direction and control of the Department.

3 SECTION 5. REPEALER 57 O.S. 2021, Section 504.7, is
4 hereby repealed.

5 SECTION 6. This act shall become effective November 1, 2026.

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